

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Tentative Ruling

**2026CLEN066655: PEOPLE OF THE STATE OF CALIFORNIA vs FINANCIAL
CASUALTY & SURETY, INC**

09/10/2026 in Department 21

Motion to Set Aside Summary Judgment and Exonerate Bail

Tentative Rulings. Parties and counsel appearing for oral argument should address the tentative decision. Parties may submit on the tentative decision by email, with a copy to all other parties in the matter, to courtroom21@ventura.courts.ca.gov before 8:00 a.m. on the day set for the hearing, with a subject line that includes “SUBMISSION ON TENTATIVE”, Case Number, Title and Party. If fewer than all parties submit on the tentative, the hearing will proceed, and the tentative ruling is subject to change. The clerk cannot advise if you should still appear or not. The decision of whether to appear for a hearing is to be made by the parties and their counsel. (Dept. 21 Rules & Procedures, p. 4, § II.I.)

The following is a statement of the Court’s tentative ruling. The Court may adopt, modify or reject the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

Motion: Financial Casualty & Surety, Inc.’s (“Petitioner”) Motion to Set Aside Summary Judgment, Discharge Forfeiture, & Exonerate Bail (*unopposed*)

Tentative Ruling:

Petitioner’s motion to set aside summary judgment, discharge forfeiture, and to exonerate bail is GRANTED. The order entering summary judgment is vacated and the judgment is set aside pursuant to California Penal Code section 1305(a).

This ruling does not affect the warrant issued on 4/23/25.

The Court orders the judgment entered on 5/29/26 on the Notice of Order Forfeiting Bail filed by People of the State of California on 5/26/26 set aside and vacated.

The Court orders the entire action dismissed without prejudice based on the motion to set aside judgment, vacate forfeiture and exonerate bail bond having been granted.

Notice to be given by the court.

Discussion:

Petitioner seeks an order setting aside the summary judgment, discharge the forfeiture, exonerate bail, and a return of any money paid, and interest thereon based on the grounds that the court lacked jurisdiction to enter summary judgment.

Here, on 3/28/24 a bond was posted for the release of Defendant Tramell Jeremiah Banks (“Banks”) from custody. Mr. Banks failed to appear in court on 4/23/25 and the bail was ordered

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forfeited at that time. Petitioner claims that the court failed to forfeit the bond in open court. On 4/24/25, the clerk of the court served by mail a notice of forfeiture. The court granted an extension through 5/11/26, and on 5/29/26 the clerk of the court served by mail a notice of summary judgment to the bail agent and Petitioner. On 6/24/26, the bail agent paid the summary judgment, in protest according to Petitioner.

Penal Code §1305(a) requires the court to declare the forfeiture of bail in open court when a defendant fails to appear without just cause.

“Because the law disfavors forfeitures, sections 1305 and 1306 must be strictly construed in favor of the surety to avoid a forfeiture of the bond.” (*County of Los Angeles v. Ranger Ins. Co.* (1999) 70 Cal.App.4th 10, 16.) “The standard of review, therefore, compels us to protect the surety, and more importantly the individual citizens who pledge to the surety their property on behalf of persons seeking release from custody, in order to obtain the corporate bond.” (*County of Los Angeles v. Surety Ins. Co.* (1984) 162 Cal.App.3d 58, 62.) “Failure to follow the jurisdictional prescriptions in sections 1305 and 1306 renders a summary judgment on the bail bond void.” (*County of Los Angeles v. Ranger Ins. Co.*, at p. 16.)

Petitioner argues that the court lost jurisdiction by failing to declare in open court the forfeiture of bail. Due to this failure by the court, Petitioner argues the court had no jurisdiction to enter summary judgment, thereby rendering the summary judgment void.

The Exhibits attached to the moving papers confirm a bond was posted on 3/28/24, noting Defendant Banks was to appear in court on 4/19/24 for arraignment. On 4/19/24 Banks appeared, arraignment was waived, a plea was entered, and the matter was continued to 5/31/24. On 5/31/24 a preliminary hearing was set for 6/24/24. After several continuances, Banks failed to appear on 4/23/25. The court’s docket information states the court ordered the bail bond forfeited with the entry listed as “Court orders bail bond forfeited.” (Exh. B to moving papers.) However, Petitioner correctly points out that the court reporter’s transcript from the 4/23/25 hearing is devoid of any statement by the court that the bail bond was forfeited.

Petitioner’s motion to set aside summary judgment, discharge forfeiture, and to exonerate bail is GRANTED.